BY ORDER OF THE COMMANDER
22D AIR REFUELING WING

MCCONNELL AIR FORCE BASE
INSTRUCTION 31-116

25 MARCH 2014

Security

MCCONNELL AFB TRAFFIC CODE

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available for downloading or ordering on the e-publishing website at **www.e-publishing.af.mil.**

RELEASABILITY: There are no restrictions on this publication.

OPR: 22 SFS/S-5X

Certified by: 22 MSG/CC
(Col Michael A. Mendoza)

Supersedes: MCCONNELLAFBI31-204, 30 November 2006

Pages: 41

This instruction implements Air Force Instruction (AFI) 31-218(I), *Motor Vehicle Traffic Supervision*. This instruction establishes procedures for the establishment and enforcement of driving privileges and rules of the road at McConnell Air Force Base as outlined in AFI 31-218(I) and AFMAN 31-116. This instruction applies to all military and civilian personnel who operate vehicles on McConnell Air Force Base. Military personnel, to include Guard and Reserve personnel on Title 10 orders, who violate this instruction, are subject to disciplinary action under Article 92, Uniform Code of Military Justice (UCMJ). All individuals in violation of this instruction are subject to having their driving privileges revoked or suspended.

Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Form 847s from the field through the appropriate functional chain of command.

SUMMARY OF CHANGES

This document has no previous versions and must be read in its entirety.

Chapter 1—INTRODUCTION **4**

1.1. Program Management. 4

1.2. Responsibilities. 4

1.3. Delegation of Authority. 4

1.4. Traffic Safety Board. 4

Chapter 2—DRIVING PRIVILEGES **5**

2.1. Requirements for Driving Privileges. 5

2.2. Stopping and Inspecting Personnel or Vehicles. 5

2.3. Implied Consent to Blood, Breath or Urine Tests. 5

2.4. Implied Consent to Vehicle Impoundment. 6

2.5. Suspension. 6

2.6. Alcohol and Drug Abuse Programs. 8

Chapter 3—PRIVATELY OWNED VEHICLE OPERATION REQUIREMENTS **9**

3.1. General. 9

3.2. Motorcycles, Motor Scooters, “TRIKE”, and Mopeds. 9

3.3. AF Form 75, Visitor/Vehicle Pass. 9

3.4. Handicapped Person Identification. 9

3.5. Vehicle Registration at non Air Force Installations. 9

3.6. Vehicle Registration at Air Force Installations. 9

Chapter 4—TRAFFIC PLANNING AND CODES **10**

4.1. Installation Traffic Codes. 10

4.2. Classification of Vehicle Accidents. 14

4.3. Traffic Accident Investigation and Reports. 15

4.4. Parking. 17

Chapter 5—DRIVING RECORDS AND THE TRAFFIC POINT SYSTEM **20**

5.1. Driving Records. 20

Table 5.1. Point Assessment for Moving Violations 20

Table 5.2. Point Assessment for Non-Moving Violations. 21

5.2. Point System Procedures. 21

Chapter 6—IMPOUNDING PRIVATELY OWNED VEHICLES **23**

6.1. Standards for Impoundment. 23

6.2. Abandoned Vehicles. 23

6.3. Impoundment Processes. 24
6.4. Disposition of Vehicles after Impoundment. 25
Chapter 7—RULES OF THE ROAD FOR PEDESTRIANS AND MOTORISTS 26
7.1. Speed Limits. 26
7.2. Stopping at Installation Entry Points. 26
7.3. Backing a Vehicle. 27
7.4. Stopping for Reveille, Retreat. 27
7.5. Distracted Driving. 27
7.6. Prohibited, Distracting and Unsafe Acts. 27
7.7. Operation of Emergency Vehicles. 28
7.8. Fresh Pursuit. 28
7.9. Adverse Road Conditions/Hazardous Weather Conditions. 29
7.10. Operating Motorcycles. 29
7.11. Operating Bicycles. 30
7.12. Repair and Maintenance of Privately-Owned Vehicles. 30
7.13. Towing Privately-Owned Vehicles. 31
7.14. Driving Under the Influence (DUI) Enforcement. 31
7.15. Obedience to Alert Lights or Klaxon. 34
Attachment 1—GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION 35
Attachment 2—REVOCATION MATRIX 37
Attachment 3—DRIVING PRIVILEGE SUSPENSION/REVOCATION PERIODS 41

Chapter 1

INTRODUCTION

1.1. Program Management. This instruction implements policy, assigns responsibility and establishes procedures for motor vehicle traffic supervision on McConnell AFB. This instruction provides additional Air Force and local installation guidance to complement AFI 31-218(I), *Motor Vehicle Traffic Supervision* and AFMAN 31-116 (AMC Supplemented), *Air Force Motor Vehicle Traffic Supervision.* The objective of traffic control programs is the safe and efficient flow of vehicles and pedestrians through reduction of factors contributing to accidents.

1.2. Responsibilities. Installation Defense Force Commander (DFC). The DFC is the Installation Commander's principal advisor on issues pertaining to the lawful movement of personnel and traffic. The DFC exercises staff responsibility for directing, regulating and controlling traffic, and enforcing installation rules pertaining to traffic control. DFCs assist traffic engineers by performing traffic control studies to gather information on traffic problems and use patterns.

1.3. Delegation of Authority. Installation commanders may delegate their responsibilities under this instruction to their vice commanders, mission support commanders or other group commanders as appropriate and provided the individual does not occupy a position such as law enforcement which would constitute a conflict of interest. Commanders should coordinate letters of delegation through their Staff Judge Advocates (SJAs).

1.3.1. The 22 MSG/CC and 22 MSG/CD are the designated officials for administration of this instruction.

1.3.2. The term “law enforcement officer” as used throughout this instruction refers to any Security Forces member or employee performing law enforcement and/or installation security duties, to include entry control.

1.4. Traffic Safety Board. The Installation Commander will establish a McConnell Traffic Safety Board (MTSB) responsible for advising the Installation Commander through the DFC and 22 MSG/CC in reference to traffic and parking issues. The primary purpose of the MTSB is to review traffic flow, parking, enforcement, engineering and traffic education programs affecting the safety of people and mission effectiveness.

1.4.1. A delegated representative shall chair the MTSB. Other members will include wing safety, the installation traffic engineer, a representative of the local labor union and representatives from other emergency response agencies as deemed appropriate by the DFC.

1.4.2. The MTSB shall convene annually or as directed by 22 ARW/CC or 22 MSG/CC for statistical analysis of the preceding year and to discuss matters of concern for traffic and pedestrian safety.

1.4.3. The MTSB shall convene annually on a separate occasion to brief the Installation Commander and Senior Support Staff on the results of statistical analysis and discussion. The MTSB shall present any recommendations and implementation strategies at this briefing.

Chapter 2

DRIVING PRIVILEGES

2.1. Requirements for Driving Privileges. Assigned personnel and family members must obtain a valid and proper driving license from Kansas or their State of legal residency (home of record) within 30 days of arrival to McConnell AFB. International driver's licenses and licenses issued by MAJCOMs for overseas locations are recognized on McConnell AFB, with the exception of foreign national students who are temporarily assigned to MAFB for training.

2.1.1. Operating a motor vehicle on MAFB is a privilege granted by the Installation Commander.

2.1.2. Government motor vehicle operators must register with the 22 LRS/Vehicle Operations IAW AFI 24-301, *Vehicle Operation* and AFI 24-309, *Fleet Management*. All operators of government-owned vehicles (GOV/GSA) must have in their possession at all times and AF Form 2293, *USAF Motor Vehicle Operator's Identification Card* and a valid state driver's license and/or international driver's license.

2.1.3. Vehicle Registration and Insurance. KSA 8-244 requires drivers to produce a valid driver's license upon request of a law enforcement officer. KSA 40-3104 requires drivers to produce proof of minimum liability insurance upon request of a law enforcement officer. 22 ARW IDP, Annex C, Appendix 1, Tab A, pg. 57 requires drivers to produce proof of valid State registration for any vehicle operating on McConnell AFB.

2.1.3.1. Many States provide exceptions or leniency concerning vehicle registration periods and driver's license renewal requirements for Active Duty military personnel when stationed outside their state of legal residency. For all state information refer to **http://drivinglaws.aaa.com/laws/drivers-license-renewal/**

2.1.3.2. People choosing to maintain license plates and registration from their State of legal residency must comply with that State's vehicle registration laws and policies. Some States require safety, emissions, or other inspections as a condition of maintaining license plates from that State. Failure to maintain those requirements will render the registration void and prohibit operation of that vehicle on McConnell AFB.

2.2. Stopping and Inspecting Personnel or Vehicles.

2.2.1. AFI 31-101, *Integrated Defense,* and AFI 10-245, *Antiterrorism,* require Installation Commanders to develop instructions and guidance that detail stop, inspection, search and impoundment of motor vehicles at CONUS installation entry gates, to include Air Force restricted and controlled areas.

2.2.2. Random Installation Entry/Entry Vehicle Checks and inspections/searches during Directed Anti-Terrorism Measures. The requirements of these programs are defined in the 22 ARW Integrated Defense Plan (IDP) Annex C, Appendix 1, Tabs C-D and 22 ARW OPLAN 10-245, Annex C, Appendix 4.

2.3. Implied Consent to Blood, Breath or Urine Tests. Persons who drive on the installation shall be deemed to have given their consent to evidential tests for alcohol or other drug content of their blood, breath, or urine when lawfully stopped, apprehended, or cited for any offense

allegedly committed while driving or in physical control of a motor vehicle on military installations to determine the influence of intoxicants. This requirement must be outlined as part of installation new comers briefings and/or in-processing of newly assigned personnel. Unit Commanders are responsible to brief all personnel on the Implied Consent requirements outlined in AFI 31-218(I).

2.3.1. After coordination with the SJA, unit commanders will direct drug and/or alcohol testing within 24 hours of suspected alcohol related motor vehicle/traffic incidents or misconduct, or where there is reasonable suspicion of drug use and the member refuses to provide consent for testing. Commanders are also encouraged to ensure Blood Alcohol Tests (BAT) are taken as soon after the incident as possible to determine the level and intensity of alcohol involvement.

2.4. Implied Consent to Vehicle Impoundment. Any person granted the privilege to operate or register a motor vehicle on a military installation shall be deemed to have given his or her consent for the removal and temporary impoundment of the POV as determined by the installation commander or applicable authority. Such persons further agree to reimburse the United States or private entity for the cost of towing and storage should their motor vehicle be removed or impounded.

2.4.1. Unit Commanders are responsible for briefing all personnel and must include the consequences when personal property is abandoned during familiarization and indoctrination training into units. Additionally, measures must be established to ensure personal effects are cleared prior to personnel departing on permanent change-of-station orders. Specific criteria for impoundment and detailed procedures are found in chapter 7 of this instruction.

2.5. Suspension. Authority to suspend and revoke driving privileges has been delegated to 22 MSG/CC, 22 MSG/CD and when applicable, to individual unit commanders. The 22 MSG/CC determines suspension and revocation guidance for non-moving violations, as well as what constitutes a non-moving violation on the installation. These standards are part of the local installation traffic code. Detailed information is located in chapter 6 and attachment 2 of this instruction.

2.5.1. Personnel with restricted, suspended or revoked driving privileges are entered into both Defense Biometric Identification System (DBIDS) and Security Forces Management Information System (SFMIS). The Suspension, Revocation, Barment and Warrant (SRBW) is used by base entry controllers and Visitor Control Center (VCC) technicians to monitor compliance. DBIDS also has adverse actions listed to alert installation entry controllers.

2.5.1.1. 22 SFS/S-5R will generate an updated SRBW every Friday (or Thursday if Friday is a non-duty day) and distribute hard/electronic copies to each installation entry point, Base Defense Operation Center (BDOC), the VCC and Commercial Search Facility.

2.5.2. Revocation of Driving Privileges. The 22 MSG/CC will immediately revoke driving privileges for a period of not less than one year when a serious incident involving a motor vehicle occurs and the 22 MSG/CC determines immediate revocation of driving privileges is required to preserve public safety or the good order and discipline of military personnel. Refer to Attachment 2 Revocation Matrix for further information.

2.5.2.1. A suspension or revocation of driving privileges is a prohibition of operating all motor vehicles to include mopeds and scooters under 50cc.

2.5.2.2. For Driving Under the Influence/ Driving While Intoxicated (DUI/DWI) cases, Security Forces (SF) will issue a preliminary revocation letter after coordination with 22 ARW/SJA and 22 MSG/CC. The revocation becomes mandatory on conviction or other findings that confirm the charge.

2.5.2.3. If multiple suspensions/revocations are imposed, they will run consecutively. In cases involving extensions of suspensions or revocations, the date of the new suspensions or revocation will be the effective date of the most recent incident.

2.5.3. Rebuttal and Reinstatement Hearings. Requests for hearings must be made in writing no later than 14 calendar days from the date the preliminary suspension letter was issued. Individual must write an MFR to 22 MSG/CC appealing the revocation of their driving privileges. Active duty personnel, dependent family members, DOD Civilians and contract employees, requesting a hearing will submit a memorandum outlining the reason for the request and will forward the memorandum to their commander for a recommendation letter. Retired personnel or civilians with no military affiliation will submit their letter to 22 SFS/S-5R section to be concurred or non-concurred by the 22 SFS/CC; these letters will then be forwarded to the 22 MSG/CC for final determination.

2.5.3.1. All hearings will be scheduled NLT 14 calendar days after request is received.

2.5.3.2. Individuals with suspended or revoked driving privileges may request limited privileges only in unique and extenuating circumstances, which impact mission accomplishment or when the suspension/revocation would cause unusual personal or family hardship. Limited privileges will not be granted for personal convenience, i.e., to shop at the Commissary or the Main Exchange or for routine appointments. Personnel requesting limited driving privileges will submit a memorandum outlining the reason for the request and will forward the memorandum to their commander for endorsement. Requests must be submitted to the 22 SFS/S5R, who in-turn sends the request and entire revocation package to the 22 MSG/CC or 22 MSG/CD for approval/determination. The approval authority may deny, grant, or partially grant the request. The approval authority will respond to the request in writing, outlining the reason for denial or conditions of approval. The requestor should respond to the 22 SFS/S5R and acknowledge receipt for the finding within three duty days.

2.5.3.3. Individuals involved in Driving While Impaired (DWI) incidents whose civilian driver's license is not suspended, may request limited driving privileges or probation pending adjudication or administrative action. The written request will be forwarded through their chain of command to 22 SFS/S-5R. The written request will then be forwarded to 22 MSG/CC or 22 MSG/CD for final approval. The request must include compelling reasons where there is an extreme hardship and no other workable alternative. The request must also cite at least one of the issues outlined in AFI 31-218(I) 2-6.c.(9).

YOUR LETTERHEAD

YOUR LETTERHEAD

DATE

MEMORANDUM FOR 22 Mission Support Group Commander

FROM: MILITARY (Name, Rank, Organization)
CIVILIAN (Name, Organization or Employer, Address)

SUBJECT: Request for Administrative Hearing

1. Request an administrative hearing for the purpose of presenting evidence and other extenuating information to be considered in vacating the suspension or revocation of my base driving privileges.

2. Direct any questions to the undersigned at duty phone XXX-XXXX.

YOUR SIGNATURE

BLOCK

DUTY TITLE OR

SQUADRON

Attachments

cc:

2.6. Alcohol and Drug Abuse Programs. After coordination with the 22 ARW/SJA, unit commanders will direct drug and/or alcohol testing within 24 hours of suspected alcohol related motor vehicle/traffic incidents or misconduct, episodes of aberrant or bizarre behavior or where there is reasonable suspicion of drug use and the member refuses to provide consent for testing. Commanders are also encouraged to ensure Blood Alcohol Tests (BAT) are taken as soon after the incident as possible to determine the level and intensity of alcohol involvement. For additional information refer to AFI 31-218(I).

Chapter 3

PRIVATELY OWNED VEHICLE OPERATION REQUIREMENTS

3.1. General. The 22 MSG/CC has identified the following requirements to operate a motor vehicle on the installation.

3.2. Motorcycles, Motor Scooters, "TRIKE", and Mopeds. As used in this instruction "Motorcycle", "Motor Scooter", "TRIKE" and "Moped" are synonymous for any two/three-wheeled motorized device designed or modified to carry any number of passengers and achieve a speed greater than 15 mph. "Bicycle" means any wheeled device designed or modified to carry any number of passengers and powered primarily by humans and/or assisted by a motor but incapable of achieving a motor-assisted speed greater than 15 mph.

3.2.1. Specific motorcycle operator training and apparel requirements are listed in chapter 4.5 of this instruction.

3.3. AF Form 75, *Visitor/Vehicle Pass*. Is not required on McConnell AFB for a vehicle pass.

3.4. Handicapped Person Identification. All valid State-issued handicap decals, placards, signs, etc, will be honored on McConnell AFB.

3.5. Vehicle Registration at non Air Force Installations. Personnel who live or work on a DoD Installation or who often use the facilities therein, may be required to register.

3.6. Vehicle Registration at Air Force Installations. Base Registration for vehicles at McConnell AFB are not required.

Chapter 4

TRAFFIC PLANNING AND CODES

4.1. Installation Traffic Codes. Pursuant to Title 18 United States Code, Chapter 13 *Assimilated Crimes Act*, assimilating Chapter 8 of the Kansas Statutes Annotated, *Automobiles and Other Vehicles*, AFI 31-218 (I), AFMAN 31-116 and this instruction constitute the local Installation Traffic Code.

4.1.1. Restraint systems. All drivers and passengers on Air Force installations will wear seat belts, or in the case of infants and small children, be properly restrained when seat belts are available as required by KSA 8-2502 and 8-2503. Law Enforcement officers are authorized to stop and cite any motor vehicle operator solely for failing to wear their seatbelt or failing to ensure all passengers are wearing seatbelts or seated in approved child restraint systems while the vehicle is in motion. Passengers may also be given a citation for not wearing their seatbelts.

4.1.1.1. IAW KSA 8-1343(a) through 8-1345, children under 14 years of age transported in motor vehicles on MAFB will be restrained as follows:

4.1.1.1.1. Less than one year old AND weighing less than 20 lbs will use a proper rear-facing infant restraint car seat;

4.1.1.1.2. Ages 1-3 AND weighing greater than 20 lbs can use a forward-facing toddler restraint car seat;

4.1.1.1.3. Ages 4-7 weighing less than 80 lbs or less than 57 inches tall will use a belt-positioning booster seat unless a lap-only belt is the only seating position available;

4.1.1.1.4. Ages 8-14 AND weighing greater than 80 lbs OR greater than 57 inches tall may wear seat belt only regardless of seating position.

NOTE: All instances of violations within the same vehicle at the same time count as one citation. No violation exists if the number of required car seats exceeds the number of available seating positions and all seating positions are properly utilized for child restraints.

4.1.1.2. Proper seatbelt use according to manufacturer's instructions by the operator and all passengers of a GOV/GSA vehicle is mandatory both on and off the installation. The number of passengers is limited to the designed seating capacity of the vehicle.

4.1.1.3. Restraint systems will be worn by all civilian personnel (family members, guests, and visitors) driving or riding in a POV on the installation.

4.1.1.4. Restraint systems will be worn by all military service members and Reserve Component members on active Federal service driving or riding in a POV whether on or off the installation.

4.1.1.5. Infant/Child restraint devices (car seats) will be required in POVs for children 4 years old or under and not exceeding 45 pounds in weight.

4.1.1.6. 22 ARW Ground Safety (22 ARW/SEG) representatives may conduct random vehicle checks to monitor seatbelt and child restraint system use. Vehicle operators and

occupants may only be cited for seat belt and child restraint device violations under this provision.

4.1.1.7. Any military member, retiree, their civilian dependents and guests operating a motor vehicle without the use of their seatbelt while on McConnell Air Force Base will be cited via DD Form 1408. Vehicle operators will be held accountable for the actions of their passengers and receive a citation for any passenger found not wearing a seatbelt or any child not properly restrained.

4.1.1.8. Passengers in Open Vehicles: Persons are not allowed to ride unrestrained in the back of any privately-owned truck (open or closed).

4.1.1.8.1. Military personnel and government employees will not ride in open bed vehicles except for mission-essential reasons as determined by their unit commander. When authorized, people riding in the back of open-bed vehicles will:

4.1.1.8.2. Remain seated in the bed at all times while the vehicle is in motion;

4.1.1.8.3. Ensure no portion of their bodies extend outside the normal width of the vehicle;

4.1.1.8.4. Ensure the tailgate, safety strap/net or stake gate is shut while the vehicle is in motion.

4.1.1.9. Drivers of buses or vans not equipped with seatbelts will not put their vehicles in motion until all passengers are seated. Standing unrestrained in a moving vehicle is prohibited. All passengers must remain seated until the vehicle comes to a complete stop.

4.1.2. Radar/LIDAR Detection Devices. The use of radar or laser detection devices or any device designed to interfere with or defeat the function of speed-measuring systems is strictly prohibited on McConnell AFB.

4.1.3. Off-road vehicles. Privately owned off-road vehicles (ORVs) designed for the sole purposes of off-road use are not authorized to be operated on MAFB to include the Southwind housing area.

4.1.3.1. ORVs may be operated as part of a sanctioned event when the event is expressly permitted by 22 MSG/CC or 22 MSG/CD. Operation of personal All-Terrain Vehicles (ATVs) is limited to the designated course located in the Krueger Recreation Area or except for official use by Security Forces. Refer to 22 FSS/Outdoor Recreation Office for more information concerning the Krueger Recreation Area.

4.1.3.2. No motorized vehicle, except powered grounds maintenance equipment, emergency response vehicles performing security or public safety operations, Civil Engineering equipment, may be operated on sidewalks, lawns, grass and other seeded areas.

4.1.4. Open Alcohol Containers in Vehicles. IAW KSA 8-1599, no person shall transport in any vehicle an alcohol beverage container when the original seal, cork, cap or other means of closure has been opened, removed or defeated unless:

4.1.4.1. Such container is kept in a locked rear trunk or compartment, or any locked outside compartment which is not accessible to any person in the vehicle while in motion or;

4.1.4.2. Such container is kept behind the last upright seat or in an area not normally occupied by the driver or any passenger when the vehicle is not equipped with a trunk or outside compartment.

4.1.4.3. The preceding restrictions do not apply to recreational vehicles parked or otherwise immobilized in the Family Camping Areas and registered with 22 FSS/Outdoor Recreation.

4.1.4.4. It shall be an affirmative defense to any prosecution under this section that the defendant or other vehicle occupants possessed the cereal malt beverage or liquor containers as a result of recycling efforts or other activities not associated with content consumption.

4.1.5. Unattended Children in Vehicles. The following guidelines apply to children under 12 years of age who are left unattended in a motor vehicle for reasonably short periods of time when weather conditions do not pose a risk of exposure injury to the child. For additional guidance on supervision of minor children refer to the MAFB *Integrated Defense Plan*.

4.1.5.1. Ages 7 through 9: May be left unattended when an adult is within eyesight, the keys are removed from the vehicle and the parking brake is applied.

4.1.5.2. Ages 10 through 11: May be left unattended when the keys are removed from the vehicle and the parking brake is applied.

4.1.6. Cross Walks. All vehicle operators will yield to pedestrians in cross walks.

4.1.7. Traffic Warden Program. Unit commanders and staff agency chiefs desiring to increase effective use of available parking may establish a traffic warden program for their organizations IAW AFM 31-201 Volume 7, paragraph 2.5. The traffic warden program does not, in any way, usurp the authority of an on-duty security forces patrol. Security Forces enforcement of traffic regulations will take precedence in the event of any conflict. Use the following guidelines to establish individual unit or staff agency programs:

4.1.7.1. Responsibilities.

4.1.7.2. The 22 SFS/CC will:

4.1.7.2.1. Provide staff support and program guidance.

4.1.7.2.2. Conduct training for designated traffic wardens.

4.1.7.2.3. Provide adequate supplies of DD Forms 1408.

4.1.7.2.4. File, maintain and process traffic tickets as outlined in this instruction.

4.1.7.2.5. Report violations to individual unit commanders and staff agency chiefs as outlined in this instruction.

4.1.7.2.6. Maintain traffic warden appointment letters at the MERC and with 22 SFS/S-5R.

4.1.7.3. On-duty Security Forces will:

4.1.7.3.1. Respond to requests for emergency assistance as needed.

4.1.7.3.2. Provide staff assistance as requested, manpower and mission requirements permitting.

4.1.7.3.3. Provide access to the KCJIS system for the purpose of identifying vehicle owners or operators.

4.1.7.4. Unit commanders/staff agency chiefs will:

4.1.7.4.1. Appoint noncommissioned officers in the grade of E-5 (SSgt), or above, as traffic wardens.

4.1.7.4.2. Designate traffic wardens in writing. Provide three copies of the letter to 22 SFS/S-3.

4.1.7.4.3. Ensure traffic wardens are enforcing parking in accordance with this instruction and the guidelines provided by 22 SFS.

4.1.7.5. Traffic Wardens will:

4.1.7.5.1. Use available media to notify building occupants and visitors that a Traffic Warden program is in place.

4.1.7.5.2. Limit enforcement activity to their designated parking areas.

4.1.7.5.3. Prepare the tickets IAW established guidelines set forth in AFM 31-201, Volume 7, paragraph 1.13.

4.1.7.5.4. Establish an internal process by which violators report to them after receiving a parking citation. Forward all issued traffic tickets to 22 SFS/S-5R for processing within 72 hours of being issued.

4.1.7.6. Applicability. Traffic wardens are limited to citing non-moving parking violations identified in Chapter 2 of this instruction, "Rules of the Road." **Exception**: Security forces must be contacted to enforce parking violations in a fire lane or handicapped parking space.

4.1.7.7. Procedures.

4.1.7.7.1. Traffic Wardens will:

4.1.7.7.1.1. Identify non-emergency parking violations within their assigned parking areas.

4.1.7.7.1.2. Issue citations in accordance with CSF guidelines.

4.1.7.7.1.3. Instruct all violators to report to the traffic warden immediately upon receipt of the citation.

4.1.7.7.1.4. Positively identify violators and complete the citation in accordance with CSF guidelines.

4.1.7.7.1.5. When violators do not comply with the reporting instructions and remain unidentified to the traffic warden, traffic wardens shall bring uncompleted traffic tickets to 22 SFS/S-5R for processing. MERC dispatchers or S-5R technicians will provide the necessary documentation to complete the traffic ticket.

4.1.7.7.2. The 22 SFS/S-5R will:

4.1.7.7.2.1. Document the individual base driving records for all violators cited.

4.1.7.7.2.2. File and maintain all records of warning notices.

4.1.7.7.2.3. Forward traffic tickets to unit commanders and staff agency chiefs for action.

4.1.7.7.2.4. Recommend suspension/revocation of base driving privileges consistent with Table 5.2, Driving Privileges Suspension/Revocation Periods, when a person accumulates non-moving parking violations.

4.1.8. Off-Installation Traffic Activities. Title 18 USC, Section 1385 ("Posse Comitatus" Act), Title 10 USC, Section 375 and DoD Directive 5525.5 strictly limit the use of Federal resources (including personnel and equipment) to enforce State and municipal law. Active duty military members and AF civilian employees engaged in law enforcement duties on McConnell AFB will not execute law enforcement duties (including traffic control and/or management) outside the legal jurisdiction of MAFB without specific approval of 22 ARW/SJA and authorization of the Installation Commander.

4.1.8.1. Personnel engaged in Integrated Defense duties may execute those duties outside the tactical perimeter and/or legal jurisdiction of MAFB as directed by the Installation Commander. These security actions must be limited to the roadways and property immediately adjacent or connected to the installation perimeter fencing or other designated items/areas of interest as identified by the Defense Force Commander.

4.1.8.2. Any person in the performance of security/resource protection duties may investigate (to include requesting identifying information) any person, vehicle or item of concern solely to determine if any security risk to the installation or its resources exists.

4.1.8.3. All investigative activity must stop once the patrolman discovers no lawful reason to believe any risk is present, regardless of any other criminal activity or concern which may arise.

4.1.8.4. Security Forces will immediately report any suspected criminal activities encountered while performing duties to the appropriate civil law enforcement agency for action and may provide statements to assist with their investigation.

4.2. Classification of Vehicle Accidents. Traffic accidents fall into two categories-Major and Minor.

4.2.1. Major accidents involve any fatality, incapacitating personal injury (requiring medical attention at a treatment facility):

4.2.1.1. Government-owned vehicle or property damage in excess of $500.

4.2.1.2. Privately-owned vehicle which renders it inoperable after simple on-scene repair or adjustment (such as pulling a bumper cover away from a tire or changing a flat for a proper spare), and/or deployment of airbag restraint systems.

4.2.2. Minor privately owned vehicle accidents involve minor functional or cosmetic damage to privately-owned vehicles or property which does not interfere with the safe operation of the vehicle or cause injury requiring medical attention beyond simple first aid to any person.

4.2.2.1. Reporting Accidents. In addition to the requirements of KSA 8-1602 through 8-1608, the driver or owner of any vehicle involved in any accident as defined in

paragraph 5.1.1 on the installation shall immediately, by the quickest means of communication available, give notice of such accident to the BDOC. The operator of any Government vehicle involved in any accident off the installation must immediately notify the local civilian law enforcement agency having jurisdiction, as well as law enforcement personnel of the nearest military installation.

4.2.2.2. Minor accidents as defined in paragraph 5.1.2 occurring on the installation, when all vehicles can be safely and normally driven from the scene, must be reported within 24 hours to the BDOC, unless accidents that do not involve alcohol or drugs. Drivers involved in such accidents shall proceed to the BDOC to accomplish AF Form 1315 with the on-duty SF flight.

4.2.2.3. Information in the written report cannot be used in criminal proceedings against the person submitting it unless the accident was originally categorized a hit and run and the violator is the person submitting the report.

4.2.3. Any accident involving any GOV will be reported to BDOC and the responsible unit Vehicle Control Officer immediately. Accidents involving GOVs meeting the criteria of paragraph 5.1.1 will be investigated.

4.2.4. Active Duty military members involved in POV traffic accidents outside the installation causing injury to the member or other damage to Government property will immediately notify the BDOC and their unit First Sergeant.

4.2.4.1. Security Forces BDOC will act as the focal point for gathering information for accidents occurring within the metropolitan areas surrounding MAFB and affecting active military personnel or GOVs. When possible, 22 SFS/S-5R will obtain copies of accident reports prepared by investigating civilian police agencies to accompany off-base accident reporting information. When BDOC receives notification of an accident outside the installation affecting injury or damage to an active military member or government property, the Controller will:

4.2.4.2.1. Notify the affected member's chain of command;

4.2.4.2.2. Notify 22 ARW/CP who will up-channel the information to the concerned Group Commander (or higher), 22 ARW/SEG and 22 ARW/PA, as appropriate and;

4.2.4.2.3. Record all information in the Security Forces blotter along with the associated case number from the investigating police agency.

4.3. Traffic Accident Investigation and Reports.

4.3.1. Security Forces respond to all on-base major vehicle accidents to render first aid, arrange for medical assistance, protect personal property, normalize traffic, identify victims/witnesses and conduct a formal investigation.

4.3.2. Accidents which qualify under paragraph 5.1.1 ONLY because a GOV or Government property are involved and no other factors are present (no injury or disabling damage) will not require a trained major accident investigator. On-duty Security Forces flight will investigate using the AF Form 1315, *Accident Report* and documenting section VII of the Standard Form 91. BDOC will contact 22 ARW/PA for official photos.

4.3.3. All other accidents which qualify under paragraph 5.1.1 will be investigated on-scene by a trained major traffic accident investigator when available using the AF Form 1315.

4.3.4. Accidents meeting criteria of paragraph 5.1.2 will be investigated by on-duty SF patrolmen when such accidents are witnessed by law enforcement or reported to BDOC. The primary goal of these investigations is to collect statistical data for 22 SFS/S-5R and ensure the orderly exchange of insurance and contact information between affected persons. Use AF Form 1315.

4.3.5. Record all accident information in the Security Forces blotter. This information will include the accident type, time and date, location, name(s) of vehicle operator(s), unit (or address when civilian not affiliated with military), vehicle description and license plate number(s) and any traffic citations issued.

4.3.6. Traffic accident investigations conducted by Security Forces and/or AFOSI will take precedence over any other types of investigations relating to the accident (Example: Any safety related investigation and/or any other investigation that may hamper accident investigation practices by Security Forces and/or AFOSI). This precludes the loss of any potential evidence that may later have to be introduced in any criminal/judicial proceedings.

4.3.7. Citations will only be issued when a violation leading to or causing an accident is witnessed by a law enforcement officer, upon reliable testimony of a credible law enforcement officer who witnessed said violation, or upon results of an investigation (Example: Speed was a factor).

4.3.8. Hit and Run/Fleeing the Scene of an Accident. All vehicle operators have a duty and responsibility to stop, render aid and provide appropriate exchange of information when involved in a traffic accident or causing damage to another motor vehicle. Law enforcement officers responding to accidents where a vehicle operator has left the scene will investigate the accident as follows:

4.3.8.1. Major accidents or GOVs: Complete all actions in paragraphs 5.3.1-5.3.3 as required and complete AF Form 3545, *Incident Report* citing "Title 18 USC, Ch. 13 assimilating KSA 8-1602-1605 (select which is appropriate for the circumstances)" in the offense block. The cited law or statute may change when a subject is identified based on that persons military affiliation and duty status.

4.3.8.2. Minor functional or cosmetic damage to privately-owned vehicles: Afford the victim and any witnesses opportunities to accomplish written statements via AF Form 1168, *Statement of Suspect/Witness/Complainant.* Capture digital color photos to accompany the statements. Issue the victim a DD Form 2701, *Initial Information for Victims and Witnesses of a Crime* along with the appropriate supplemental sheet produced by 22 ARW/JA. Record all pertinent information in the Security Forces blotter as "Hit and Run" and forward statements and photos to 22 SFS/S-5R for record.

4.3.8.3. Once a suspect/subject is identified in any hit-and-run case, that person will be apprehended under the applicable law or statute based on their military affiliation and duty status. Statements and photos completed under paragraph 5.3.6.2 will become part of the case file along with the AF Form 3545 following the apprehension of a suspect/subject.

4.3.8.4. 22 SFS/S-2I will coordinate with outside law enforcement agencies to investigate persons suspected of fleeing/leaving the scene of an accident (hit and run) who are not military members subject to the UCMJ and do not reside on McConnell AFB.

4.3.9. Damage to Vehicles at AAFES/DECA Facilities. Individuals who believe their vehicle may have suffered damage from shopping carts, patrons or employees of any AAFES or DECA activity while their vehicle was within any parking or loading/unloading areas of those facilities will report that damage to the store manager or ranking supervisor. Damage thought to be caused intentionally or through willful neglect will be reported to Security Forces and investigated as a criminal act.

4.4. Parking. Vehicle parking shall be available to the greatest extent possible on a "first come, first serve" basis. Building custodians may request reserve parking spaces for Commanders, Command Chiefs, First Sergeants, visiting colonels and generals, customers, visitors, handicapped people and government vehicles. Authority over reserved parking planning is delegated to 22 MSG/CC. Reserved parking is approved on a case-by-case basis.

4.4.1. Reserved Parking. The following reserved parking is currently authorized on McConnell AFB: Wing Commander (22 ARW/CC), Vice Commander (22 ARW/CV), Group Commanders (22 MSG/CC, etc), Deputy Group Commanders (22 MSG/CD, etc), Squadron/Detachment Commanders (22 CES/CC, etc), Squadron Deputies (22 LRS/DLGS, etc), Flying Squadron Operations and Maintenance Officers (50 AS/DO, etc), Command Chief Master Sergeant (22 ARW/CCC), First Sergeants (22 SFS/CCF, etc), Enlisted Group Superintendents (22 MSG/CCCs, etc), Chief Master Sergeants (CMSGT), physically handicapped (Handicap), Reserved Government (GOV VEH or GOV ONLY), and GEN/COL (GEN/COL). NOTE: Force protection and anti-terrorism concerns may eliminate or suspend the use of rank or office to designate parking through coordination with the Threat Working Group.

4.4.1.1. All signs will be made or procured by 22 CES. Reserved parking signs shall be colored engineer grade brown background with 2-inch white letters and mechanically fastened to the curb face. Curb signs may be used in conjunction with standing signs. Painting signs on pavements is discouraged.

4.4.1.2. Handicap parking is regulated under the Uniform Federal Accessibility Standards which applies to McConnell AFB. Designate handicap parking IAW the appropriate Manual on Uniform Traffic Control Devices for Streets and Highways and applicable DoD guidelines.

4.4.1.3. Facility managers where a disabled or handicapped AF/NAF civilian employee who maintains State-issued handicap vehicle registration and/or parking placards should request to reserve an appropriate parking spot for that specific employee. Regular handicap parking is available to anyone authorized to use it.

4.4.1.4. Use of handicapped parking is limited to the person for whom the handicapped license plate, sticker, decal or other identification media has been authorized. The person authorized the privilege must be in the vehicle or facility where the parking space is located at the time a vehicle is parked in a handicapped parking space.

4.4.2. Requests for Reserved Parking. Facility managers shall identify specific parking needs of their facility (Example: Bldg 672/Water Shop should have no need to reserve a spot for 384 ARS/DO) including handicapped employees IAW paragraph 4.9.1.3. Apply the following criteria when constructing the request:

4.4.2.1. Give bicycle, motorcycle, car-pool parking and the location of fire suppression systems or hydrants and emergency exits special consideration.

4.4.2.2. Give priority to parking spaces for customers, visitors and handicapped people when determining location of reserved parking.

4.4.2.3. Submit AF Form 1768, *Staff Summary Sheet* and AF Form 332, *Base Civil Engineer Work Order Request* to the 22 MSG/CC through 22 SFS/S-3, 22 CES/CEO, 22 CES/CC and 22 ARW/SEG. The request will include a map of the existing parking plan and reserved parking spaces with proposed changes clearly indicated. Justify requested changes. Approved requests shall be maintained by 22 CES/CECE.

4.4.2.4. Reserved parking will not exceed 10 percent of available parking in the immediate vicinity of the facility manager's area of responsibility. Government vehicle and handicapped parking spaces are not counted against total reserved parking spaces.

4.4.2.5. The Traffic Safety Board will review and validate the reserved parking plan every two years or as directed by the Installation Commander.

4.4.3. Prohibited Parking Acts. All parking provisions of KSA 8-1571 through KSA 8-1572 apply. Additionally, legal parking areas are bordered on both sides by white or yellow painted lines on the surfaces of the parking lot. Only one vehicle per parking space is authorized with the exception of motorcycles/bicycles. Whenever any parking stall is marked with stall lines it shall be unlawful to:

4.4.3.1. Park on, across or extended over any line or pavement marking designating the parking space; park in such a position that is not entirely within the designated lines or markings or park backed into any diagonal parking space so as to be parked facing the normal traffic flow.

4.4.3.2. Parking is also prohibited on a lawn, seeded area, unless otherwise posted; within 25 feet of a building or structure unless a designated parking space exists; within 15 feet of a dumpster or trash receptacle or in such a way that would block access to the dumpster; on the narrow side of two lane streets within the family housing area; in any position blocking or obstructing flight line access roads or gates or on the inside circle of any traffic island-vehicles must be parked against the outside curb nearest to the housing unit.

4.4.4. Recreational Vehicles and Vehicles for Sale. 22 FSS/Outdoor Recreation Office shall identify, mark and maintain parking lots for long-term storage of trailers, oversized and recreational vehicles and resale activities with approval of 22 MSG/CC. MAFB residents will make the fullest use of the RV Storage Lot for long-term parking of RVs, trailers and oversized vehicles.

4.4.4.1. Southwind housing residents may park recreational vehicles and trailers in their driveways for short periods not to exceed 48 hours in any seven day period. Residents will use their driveways and carports as much as possible to avoid parking oversized

recreational vehicles on the street. Enlisted dormitory residents may park recreational vehicles and trailers in dormitory parking lots for short periods not to exceed 48 hours in a seven day period.

4.4.4.2. Law enforcement officers may cite any recreational vehicle or trailer creating traffic, environmental or other safety hazard regardless of the amount of time parked in one location.

4.4.4.3. Vehicle owners must obtain a sale permit from 22 FSS/Outdoor Recreation prior to parking in the designated sale lot. Displayed vehicles must comply with safety and registration requirements for the duration of the permit.

4.4.4.4. Vehicles in the sale lot without a permit will be cited. Vehicles remaining in the lot after the permit has expired will be cited and are subject to impound IAW chapter 7 of this instruction.

Chapter 5

DRIVING RECORDS AND THE TRAFFIC POINT SYSTEM

5.1. Driving Records. Use SFMIS to record vehicle traffic accidents, moving and parking violations, suspension or revocation actions and traffic point assessments involving military and DoD civilian personnel, their family members and other personnel operating motor vehicles on a military installation. Point assessment will be IAW AFI 31-218(I) Chapter 5 unless specified otherwise below. Use AF Form 1313, *Driver Record*, when SFMIS is not available. When filling out the form, use the following codes in the "accident classification" block:

5.1.1. Identify individuals who are principals in a motor vehicle accident as "Driver 1" subject or "Driver 2" victim.

5.1.2. Identify accidents appropriately with "MVA" minor vehicle accident; (MJVA) major vehicle accident; "NLD" no liability determined; "PD" property damage; "PI" personal injury; "G" government; "P" private; "V" vehicle; and "FO" fixed object.

Table 5.1. Point Assessment for Moving Violations.

Violation	Points Assessed
Reference paragraph 4.1.1.1 (children under the age of 6 or under 60 pounds should be properly restrained in a child safety seat. See note #1	2
Operating a radar detection device to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations). See note #2.	3
Failure to yield to pedestrians in designated walkway/crosswalk. See note #2.	3
Failure to wear proper PPE while operating or riding on a motorcycle, MOPED, or a three or four-wheel vehicle powered by a motorcycle-like engine.	3
Using a cell phone without hands free device while operating a motor Vehicle. See note #2.	4
NOTES: 1. Applies to not using or when child restraint system is improperly installed, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer), etc. Assess four points when no restraint system of any kind is used. 2. When violation occurs within an active school zone, add 1 point to point assessment	

Table 5.2. Point Assessment for Non-Moving Violations.

Violation	Points Assessed
Unattended child under 12 years of age left in vehicle. Animals are included if a danger exists to the animal. See note #2.	6
Improper registration (fraudulent tags).	4
Misuse of handicap decal. See note #3.	3
Illegally parked in designated handicap area (no decal, license or placard displayed).	3
Unattended vehicle (while running).	3
Abandoned vehicle.	3
Improper parking. See note #4 and 5.	2
Improper registration (expired or unregistered).	2

NOTES:

1. When two or more violations are committed on a single occasion, points may be assessed for each violation.
2. When an AF Form 3545 will also be accomplished. Revocation of driving privileges for one year will be considered by the commander. **Example**: If children or animals were left in dangerous conditions in vehicle, i.e., in hot weather where interior temperatures may reach dangerous levels, keys left accessible to children or where conditions are deemed hazardous by a reasonable person.
3. When a vehicle has a handicap decal displayed, but the occupant is not the decal or placard registrant and is not dropping off or picking up the handicapped registrant. Also includes parking in an area designated for "Van" access only, and handicap registrant has parked another vehicle class instead.
4. When designated in local parking plan (i.e., double parked, parked in reserved parking, against the flow of traffic and those areas designated for emergency vehicles).
5. Emergency vehicles are authorized to park in any area deemed necessary to affect a response.

5.2. Point System Procedures.

5.2.1. Distribute citation copies and process point assessments IAW AFMAN 31-201, Volume 7, *Security Forces Reports and Analysis*.

5.2.2. The 22 MSG/CC may suspend or revoke driving privileges as provided by this instruction regardless of whether the improvement measures identified in AFI 31-218(I) are accomplished.

5.2.2.1. Unit Commanders may request suspension or revocation of an individual's driving privileges when they are identified as problem drivers or for specific acts or

violations. Forward these requests through 22 SFS/S5R who will route them to the 22 MSG/CC or 22 MSG/CD, explaining the details and reasons for the request

5.2.2.2. When personnel PCS, the member will forward a copy of their orders to 22 SFS/S5R office for review. The DFC will ensure all suspensions, revocations and driving records are forwarded to gaining commanders by the use of SFMIS. All driving records of personnel who have PCSed to McConnell AFB will be honored.

Chapter 6

IMPOUNDING PRIVATELY OWNED VEHICLES

6.1. Standards for Impoundment. In addition to AFI 31-218, Chapter 2.3.b, impoundment by law enforcement officials is justified when a vehicle is parked illegally or for unreasonable periods, interfering with military operations, creating a safety hazard, disabled by accident, left unattended in a restricted or controlled area, interferes with the normal traffic flow, threatens public safety or convenience, was involved in criminal activity, contains evidence of a criminal activity or abandoned.

6.1.1. Emergency impoundment is justified when a vehicle is illegally parked or left unattended:

6.1.1.1. On a street or is double-parked and interferes with the safe and orderly flow of traffic.

6.1.1.2. On a sidewalk, within an intersection or crosswalk, in a fire lane or is blocking a driveway so that the vehicle interferes with operations or creates a safety hazard to roadway users or the general public.

6.1.1.3. When blocking an emergency exit of any public place.

6.1.1.4. In a designated restricted or controlled area in such a manner that it poses a safety or security hazard or adversely impacts mission activities.

6.1.1.5. Street cleaning or snow removal operations after attempts to contact the owner fail.

6.1.1.6. Emergency operations during a natural disaster, fire or other emergency.

6.1.1.7. The vehicle driver or owner is apprehended and unable or unwilling to arrange removal of the vehicle (such as following a DUI incident).

6.1.1.8. The POV is mechanically defective and/or a danger to others using the public roadways.

6.2. Abandoned Vehicles. A privately-owned vehicle is considered “abandoned” and may be impounded when any of the following are true:

6.2.1. The vehicle has been parked in the same location for more than 30 days (Exception: when properly parked at the owner’s residence and the owner is away for official military duty, vehicles marked “for sale” and registered with 22 FSS/Outdoor Recreation office and vehicles parked in the designated long-term parking area west of Bldg 732 when the owner is away for official military duties).

6.2.2. Major engine or body parts are missing and it presents an unsightly appearance or the vehicle is missing integral safety components (taillights, headlights, seatbelts etc) rendering it inoperable.

6.2.3. The vehicle has flat tires or no tires.

6.2.4. The state registration is missing or has expired for 30 days or more and the owner is not TDY.

6.2.5. An accumulation of mechanical parts, fluids or debris under or around the vehicle presents an environmental hazard.

6.3. Impoundment Processes. Contact the approved towing company anytime a Security Forces member requires a vehicle on McConnell AFB be removed and impounded. When law enforcement officers deem a vehicle an emergency safety hazard IAW paragraphs 6.1.1-6.1.2.4 of this instruction, it may be towed to the designated SF impound lot or to the approved towing company storage facility for safekeeping. Law enforcement officers and BDOC Controllers will use all available resources to contact vehicle owners to correct the unlawful or unsafe condition as soon as possible. When those efforts fail, Security Forces will:

6.3.1. Contact the approved towing company anytime a Security Forces member requires a vehicle on McConnell AFB be removed and impounded.

6.3.2. Seize and secure any weapons, high value items (valued at more than $300.00), moneys, government property, or military identification cards discovered during the inventory of the vehicle.

6.3.3. Have a Security Forces member directly supervise approved towing company when they are towing a vehicle from McConnell AFB.

6.3.4. Complete a DD Form 2505, *Vehicle Tow Authorization*, prior to the removing a vehicle from McConnell AFB.

6.3.5. Complete a DD Form 2506, *Vehicle Impoundment Report*, prior to removing a vehicle form McConnell AFB.

6.3.6. Complete an AF 3545, Incident Report, as needed, anytime a vehicle is impounded by Arrow Wrecker Service.

6.3.7. Non-emergency removal of abandoned vehicles: Installation patrols will conspicuously place a DD Form 1408, *Armed Forces Traffic Ticket* in violation of paragraphs 7.2-7.2.5 of this instruction on the vehicle. Instruct the owner to correct the abandoned condition and report to BDOC within seven calendar days.

6.3.7.1. If the owner fails to report within the specified time period and the vehicle still meets abandonment criteria, a DD Form 2504, *Abandoned Vehicle Notice* will be conspicuously placed on the vehicle. A second copy for patrolman's record and a third copy forwarded to 22 SFS/S-2I. Document all impoundment activities in the law enforcement blotter and notify the affected First Sergeant when applicable.

6.3.7.2. If the vehicle is not removed within three days of posting the abandoned vehicle notice, forward the DD Form 1408 and DD Form 2504 to 22 SFS/S-2I through 22 SFS/S-5R for further impoundment action.

6.3.7.3. S-2I will complete and issue a DD Form 2505, *Abandoned Vehicle Removal Authorization* only when a contracted wrecker service is used. Once impounded, a DD Form 2506 will be completed. All sides of the vehicle will be photographed. An inventory inspection will be conducted and all valuable items in the vehicle will be accounted for via AF Form 52, *Evidence Tag*.

6.3.8. At times, civilian law enforcement or civilian government agencies will request the Air Force impound an on-base vehicle for reasons not related to military issues. Any request

to confiscate or impound a privately-owned vehicle made by an outside law enforcement or governmental agency must be coordinated with 22 ARW/SJA and the DFC. Once permission is granted, follow procedures specified in paragraph 6.3.1-6.3.1.3 of this instruction. Complete and issue DD Form 2505 only when a contracted wrecker service is used.

6.3.8.1. POVs impounded on behalf of another agency will be held no longer than 60 days. If no action is taken by the requesting agency, the vehicle will be returned to its owner.

6.4. Disposition of Vehicles after Impoundment. All records of impoundment activity will be held for a total of 120 days prior to disposition of the vehicle and property. Copies of reports will be available to 22 LRS for their records as needed. Dispose of abandoned vehicles and contents IAW AFI 31-206, *Security Forces Investigations Program* and DoDM 4160.21, *Defense Reutilization and Marketing Manual*. Record all disposition actions in the SF blotter.

6.4.1. S-2I will coordinate with 22 ARW/PA and use all available methods to provide reasonable notice of impoundment and an opportunity to reclaim a vehicle no less than 60 days prior to disposition.

Chapter 7

RULES OF THE ROAD FOR PEDESTRIANS AND MOTORISTS

7.1. Speed Limits. Limits specified in this paragraph shall be the maximum allowable speeds. Hazardous conditions may prompt a reduction of these limits with little or no notice to the public. Vehicle operators are subject to speed checks by approved speed measuring devices. MAFB speed limits are:

7.1.1. . Main base area, unless otherwise posted: 25 miles per hour (mph).

7.1.2. Southwind Family Housing, Travis Street and Winfield Court Areas: 20 mph or as posted.

7.1.3. 15 MPH within the flight line maintenance complex (FMC) and on the aircraft parking areas unless otherwise permitted.

7.1.4. 10 MPH when passing any troop formation or operating a vehicle in any parking lots. Driving or passing between troop formations is prohibited.

7.1.4.1. Overtaking troop formations from the rear is prohibited unless there is sufficient time to pass without interfering with on-coming traffic, exceeding the speed limit, or endangering the formation.

7.1.5. 5 MPH within 25 feet of any aircraft.

7.1.6. Passing moving vehicles marked “EXPLOSIVES” or a convoy transporting explosives is prohibited.

7.1.7. Excessive Speed Rule: Any individual operating a motor vehicle greater than 20 mph over the posted speed limit will be subject to suspension of base driving privileges. Each citation under this provision will be forwarded via 22 SFS/S-5R to the 22 MSG/CC or CD for consideration. Each incident will be reviewed on a case-by-case basis and suspension may be imposed as directed by the 22 MSG/CC or CD.

7.1.8. Minimum Speed Rule: No person will drive a vehicle at a speed which will slow the normal and reasonable movement of traffic, except when reduced speed is necessary for safe operation due to road conditions or vehicle/equipment operator instructions. The operator of such a slow moving vehicle shall yield right-of-way to ensure no more than four vehicles are being detained.

7.1.9. Racing, Exhibition of Speed or Speed Contests: No person shall drive any vehicle in any race, speed competition or contest, drag race or acceleration contest, test of physical endurance, exhibition of speed or acceleration, or for the purpose of making a speed record, and no person shall in any manner participate in any such race, competition, contest, test or exhibition upon any roadway or parking lot on MAFB at other than sanctioned events.

7.2. Stopping at Installation Entry Points. Drivers must stop when entering MAFB unless otherwise directed by on-duty entry controllers. Drivers must turn off headlights and use parking lights when approaching any gate during darkness or reduced visibility. Vehicles equipped with automatic headlights which cannot be turned off are not in violation.

7.3. Backing a Vehicle. Vehicle operators will not back their vehicle unless such movement can be safely made without interfering with other traffic.

7.3.1. A spotter or ground-guide is required for all GOV/GSA backing maneuvers when a capable person is available.

7.4. Stopping for Reveille, Retreat. All personnel driving a vehicle shall immediately pull to the right of the roadway or traffic lane and stop when reveille and retreat is sounded. The vehicle will not be placed in motion until the last note is sounded unless directed by a law enforcement officer.

7.4.1. Passing any vehicle stopped for reveille and retreat is prohibited except for authorized emergency vehicles as defined in paragraph 4.3 of this instruction.

7.5. Distracted Driving. No person operating a vehicle shall utilize any portable telecommunications equipment (cell phone, PDA, tablet or similar device) for any reason (to include text messaging, e-mail, web browsing or voice dictation) unless safely and lawfully parked OR using a single-earpiece hands free device. NOTE: Holding the device with a hand away from one's face and enabling "speaker phone" (or similar mode) is a violation under this provision.

7.6. Prohibited, Distracting and Unsafe Acts. Vehicle operators and passengers shall not:

7.6.1. Display bumper stickers or other signs or paraphernalia which disparage the President of the United States; espouse illegal discrimination based on race, creed, color, sex, religion or national origin; advocate the use of force or violence to deprive individuals of their civil rights; that promote obscenity; or otherwise endanger military good order and discipline;

7.6.2. Operate a vehicle on any street or thoroughfare open to the public while the vehicle is being manipulated through the use of aftermarket hydraulic or pneumatic suspension systems;

7.6.3. Broadcast sounds from any stereo equipment in or on a vehicle at a volume that can be heard more than 50 feet from the vehicle;

7.6.4. Operate a vehicle on any street or thoroughfare which produces excessive fluids, noise or smoke as a result of defective vehicle parts or automotive systems, or after-market installation of automotive parts;

7.6.5. Leave their vehicle unattended by a capable vehicle operator with key in ignition and engine running. NOTE: Vehicles equipped with keyless remote-start systems may be left unattended with doors locked and key not inside. Ref: KSA 8-1573

7.6.6. Wear of headphones, earphones or other listening devices (other than medical hearing aids and single-ear, hands-free cell phone devices) while operating a motor vehicle is prohibited unless hearing protection is required by AFOSH/OSHA standards for the specific equipment.

7.6.7. Crossing over unprotected fire hoses is prohibited unless directed by a fire fighter or law enforcement official performing traffic control duties at the scene.

7.6.8. No person shall throw, place or deposit injurious matter (nails, tacks, glass, wire, etc.) or any other substance likely to cause injury or damage onto any roadway. Any person who

intentionally or inadvertently causes such injurious matter onto a roadway shall immediately remove or cause to be removed such materials.

7.6.9. IAW KSA 8-1711(a) and 8-1723(f), no vehicle (except authorized emergency vehicles as described in chapter 4.3) shall be equipped with any light or lighting system which displays a red color to the front or sides. Underbody lighting systems shall not flash, emit any shade of red color nor shall any portion of the bulb be visible from outside the vehicle. Any lights forward of the vehicle's cab may only emit or reflect a white or amber color.

7.7. Operation of Emergency Vehicles. Pursuant to KSA 8-1506, "The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law, or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated. The driver of an authorized emergency vehicle may:

7.7.1. Park or stand [on any roadway], irrespective of the provisions of this [instruction];

7.7.2. Proceed past a red stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

7.7.3. Exceed the maximum speed limits so long as such driver does not endanger life or property;

7.7.4. Disregard regulations governing direction of movement or turning in specified directions.

7.7.5. The exemptions herein granted to an authorized emergency vehicle shall only apply when such vehicle is making use of an audible signal meeting the requirements of KSA 8-1737 AND visual signals meeting the requirements of KSA 8-1720, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from the front of the vehicle.

7.7.6. The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of reckless disregard for the safety of others."

7.7.7. Motorists must pull to the extreme right side of the roadway and come to a complete stop when approached from any direction by an authorized emergency vehicle using emergency lights and siren.

7.8. Fresh Pursuit. Law enforcement officers are authorized to use "fresh pursuit" when they know, or have reasonable grounds to believe, the operator of a motor vehicle has committed or attempted to commit a felony offense or endangered USAF Protection Level resources.

7.8.1. On initiation of a pursuit, entry controllers will use all available means to secure the exit points to prevent escape of the suspect/subject.

7.8.2. Pursuit will only continue off the installation by approval of the on-duty Flight Chief when the fleeing suspect/subject is known to be armed and dangerous or suspected of committing a serious felony offense (such as confinement escape, murder/manslaughter, rape/sexual battery/assault, home invasion, etc) and immediately threatens the safety and welfare of the general public.

7.8.3. Immediately discontinue any high-speed response or pursuit any time safety of the law enforcement officer, suspect, general public or USAF resources are endangered. Pursuit off the installation will only continue until the suspect/subject surrenders, civil authorities assume pursuit, the suspect and vehicle can be positively identified or safety of the law enforcement officer, suspect or general public is endangered.

7.8.4. BDOC will maintain contact with Sedgwick County emergency dispatch throughout any off-base pursuit and notify the DFC and 22 ARW/CP as soon as practical.

7.8.5. 22 ARW/CP will notify 22 ARW/CC, 22 MSG/CC and 22 ARW/PA as appropriate.

7.9. Adverse Road Conditions/Hazardous Weather Conditions. The following actions will be implemented during snow/ice and other natural disasters which affect the safety of motorists on MAFB.

7.9.1. The BDOC controller will contact/advise the 22 MSG/CC upon approval from the 22 SFS/CC of the severity of the roads, to determine if the speed limit for the base needs to be lowered in the event the road conditions become hazardous due to a winter storm i.e. snow, ice or freezing rain.

7.9.2. Entry Controllers will post signs at the entry points to inform motorists of reduced speed limits.

7.10. Operating Motorcycles. In addition to KSA 8-1593 through 8-1598 and chapter 3 of this instruction, the following rules shall apply to operators of vehicles meeting the definition of motorcycle in chapter 3.2:

7.10.1. All active duty Air Force members must complete Course IVA (Beginners Course) or IVB (Experienced Rider Course) IAW AFI 91-207, *The Air Force Traffic Safety Program* and DoDI 6055.4, *Motorcycle Rider Education Requirements*, before operating a motorcycle on or off the installation roadways. This includes all military personnel on any form of active duty, inactive duty for training.

7.10.2. Permitting a person who does not meet the training and licensure requirements of this instruction to operate a motorcycle may result in administrative suspension or revocation of the owner's and/or operator's base driving privileges.

7.10.3. Headlights will be on when the motorcycle is in motion.

7.10.4. Motorcycles will have a rear view mirror attached to each sides of the handlebars.

7.10.4.1. As a minimum, the following personal protection equipment is REQUIRED for all persons operating a motorcycle on McConnell AFB:

7.10.4.2. Head Protection. A helmet designed to meet or exceed Department of Transportation (DOT) standards, must be worn and properly fastened under the chin. Commanders may authorize the use of tactical helmets in appropriate off-road training or operating environments after completing an Operational Risk Management (ORM) evaluation.

7.10.4.3. Eye Protection. Goggles, wrap around glasses, or a full-face shield (properly attached to helmet) designed to meet or exceed American National Standards Institute (ANSI) Standard Z87.1 for impact and shatter resistance will be worn. A windshield does not constitute proper eye protection.

7.10.4.4. Protective Clothing. Wear of long sleeved shirt or jacket, long trousers, and full-fingered gloves are required. Gloves should be sturdy, non-slip type to permit a firm grip on the controls. Wear of a motorcycle jacket and pants constructed of abrasion resistant materials such as leather, Kevlar®, and/or Cordura® containing impact absorbing padding are strongly encouraged.

7.10.4.5. Foot Protection. Riders will wear sturdy over the ankle footwear that affords protection for the feet and ankles (durable leather or ballistic type cloth athletic shoes that cover the ankles may be worn). Sandals, low quarter sneakers and similar footwear will not be used.

7.10.4.6. Garment and Motorcycle Visibility. Motorcycle riders will wear a brightly colored outer upper garment during the day and a reflective upper garment during the night. Outer upper garment shall be visible and not covered. Wearing a backpack is authorized if it has reflective properties.

7.10.4.7. The following fluorescent colors are some examples considered sufficiently vivid in color/reflectivity to ensure increased visibility from a distance: bright red, yellow, lime yellow, orange, or lime green. Note: Outer garments consisting of fluorescent colors with reflective panels (including motorcycle riding leathers with contrasting panels) are acceptable as an upper body garment. Note: Battle dress uniforms (woodland or desert), Airmen battle uniform, service uniform combination, and flight suits are not considered brightly colored or contrasting.

7.11. Operating Bicycles. In addition to KSA 8-1586 through 8-1592b, the following rules shall apply to operators of devices meeting the definition of bicycle in chapter 3.2:

7.11.1. Bicycles shall operate on a traffic way. Bicycles shall not ride more than two abreast, except on parts of roadways set aside for the exclusive use of bicycles. Cyclists shall ride as near to the right side as practical, exercising due caution when passing a standing or parked vehicle. (reference mopeds section)

7.11.2. During the hours of darkness all bicycles will be equipped with:

7.11.2.1. Reflectors attached to the pedals of the bicycle, which are visible from a distance of 200 feet to the front and rear of a bicycle ridden;

7.11.2.2. A lamp on the front emitting a white light visible from a distance of 500 feet to the front and a red reflector on the rear visible from a distance from 100 feet to 600 feet to the rear.

7.11.3. All cyclists will wear an approved safety helmet while riding.

7.11.4. Pedestrians and cyclists on any traffic way where no sidewalk or improved path is provided, or where such path is part of or connected to a traffic way, shall not wear headphones, earphones or other listening devices (other than medical hearing aids and single-ear, hands-free cell phone devices).

7.12. Repair and Maintenance of Privately-Owned Vehicles.

7.12.1. Emergency Repair: Authorized only to the extent required to render an incapacitated vehicle mobile enough to mitigate a potential or actual hazard or obstruction. Use emergency

flashers and lights to warn other motorists of hazard when available. Contact Security Forces for traffic control when a vehicle is stalled in traffic.

7.12.2. Simple Maintenance: Routine service tasks related to the continued safe operation and serviceability of a motor vehicle. Examples include changing a tire, oil/transmission services, changing various filters, etc. Simple maintenance may be conducted at Bldg 424, Skills Development Center/Auto Hobby Shop or any place on base where no public or environmental hazard is presented AND only when the work can be completed within 24 hours.

7.12.3. Complex Repair: Any work involving major components or systems expected to endure beyond 24 hours or involve the capture and disposal of significant amounts of automotive fluids (complete coolant flush, draining a fuel tank, etc). Examples include engine overhauls, fitting aftermarket exhaust or suspension systems, cylinder head removal, body/cosmetic work involving removal or application of paint, etc. Complex repairs may ONLY be performed at Bldg 424, Skills Development Center/Auto Hobby Shop.

7.13. Towing Privately-Owned Vehicles. Personal towing of POVs is only permitted when:

7.13.1. Patronizing the services of an established wrecker or tow service with proper apparatus or;

7.13.2. Using a hitched tow bar or tow dolly, using all available emergency flashers on both vehicles (when available) and not exceeding 20 mph.

7.13.3. Vehicles disabled by collision damage or fire may not be towed onto or stored on MAFB unless prior arrangements have been made with employees of the Auto Hobby Shop at Bldg 424. Wrecked vehicles may be cited and removed under the provisions of chapter 7 of this instruction.

7.14. Driving Under the Influence (DUI) Enforcement. IAW KSA 8-1567, 8-1567(a) and 8-2,144, the following provisions apply:

7.14.1. DUI, Ages 21 and Older: KSA 8-1567: "No person shall operate or attempt to operate any vehicle [upon McConnell AFB] while:

7.14.1.1. the alcohol concentration in the person's blood or breath as shown by any competent evidence, including other competent evidence, as defined in paragraph (1) of subsection (f) of KSA 8-1013 and amendments thereto is 0.08 or more;

7.14.1.2. the alcohol concentration in the person's blood or breath as measured within two hours of the time of operating or attempting to operate a vehicle is 0.08 or more;

7.14.1.3. under the influence of alcohol to a degree that renders the person incapable of safely driving a vehicle;

7.14.1.4. under the influence of any drug or combination of drugs to a degree that renders the person incapable of safely driving a vehicle; or

7.14.1.5. under the influence of a combination of alcohol and any drug or drugs to a degree that renders the person incapable of safely driving a vehicle."

7.14.2. DUI, Less than 21 years of age: IAW KSA 8-1567(a): "It shall be unlawful for any person less than 21 years of age to operate or attempt to operate a vehicle [upon McConnell AFB] with a breath or blood alcohol content of 0.02 or greater."

7.14.3. DUI, Commercial Driver's Licenses: IAW KSA 8-2,144: "No person shall drive any commercial vehicle, as defined in KSA 8-2,128 and amendments thereto, within [McConnell AFB] while:

7.14.3.1. the alcohol concentration in the person's blood or breath as shown by any competent evidence, including other competent evidence, as defined in paragraph (1) of subsection (f) of KSA 8-1013 and amendments thereto is 0.04 or more;

7.14.3.2. the alcohol concentration in the person's blood or breath as measured within two hours of the time of operating or attempting to operate a vehicle is 0.04 or more; or

7.14.3.3. committing a violation of subsection (a) of KSA 8-1567, and amendments thereto…"

7.14.4. Specific procedures for detection, standardized field sobriety testing, evidentiary testing and processing of suspected DUI offenses are outlined in SFOI 31-103, *Flight Operations*.

7.14.5. Evidentiary breath tests to determine alcohol content will only be administered by Security Forces personnel trained and certified by the Kansas Department of Health and Environment (KDHE) to use the "Intoxilyzer 8000" instrument.

7.14.5.1. 22 SFS/S-5 will maintain the instrument and all records relating thereto IAW with applicable statutes and Kansas Administrative Regulations (KAR) prescribed for the breath testing instrument and relating to certification of agency instrument operators.

7.14.6. Law enforcement officers will request people to submit to evidentiary tests when they have reasonable grounds to believe they were:

7.14.6.1. Operating or attempting to operate a motor vehicle while under the influence of alcohol, drugs or both and were detained, apprehended or taken into custody for violating state statutes and this traffic code.

7.14.6.2. Involved in a traffic accident while operating a motor vehicle which resulted in property damage, personal injury or death and the investigating law enforcement officer has reasonable belief that alcohol, drugs or both were contributing factors to the accident.

7.14.7. Vehicle operators who refuse to submit to evidentiary tests will not be administered such tests unless:

7.14.7.1. There is probable cause to believe the civilian operator of a motor vehicle was under the influence of alcohol, drugs or both while operating a motor vehicle in such a manner as to cause the death or serious injury of another person.

7.14.7.2. There is probable cause to believe a military member was operating a motor vehicle under the influence of alcohol, drugs or both and authority to search and seize was obtained IAW the UCMJ.

7.14.7.3. Active duty personnel who refuse to submit a breath sample may be ordered by 22 MSG/CC to involuntarily surrender a blood sample after coordination with 22 ARW/SJA.

7.14.8. Blood and Urine Tests. Qualified 22 MDG personnel must perform blood and urine tests by administering the Enzymatic or Anstles Test (commonly referred to as the blood alcohol test or BAT) or urinalysis as requested. The 22 MDG will provide 22 SFS with results of any evidentiary blood test performed under the "implied consent policy" within three duty days of the blood withdrawal.

7.14.8.1. Urine Tests for Drugs. When the law enforcement officer has reasonable grounds to believe the driver's impairment results from a drug or other substance undetectable by the blood or breath tests, a urinalysis may be requested. When requested in place of a blood or breath test, the Implied Consent briefing must be accomplished. If requested after a refusal to submit to an evidentiary test or a test revealed an alcohol concentration below the legal limits, standard search and seizure rules apply.

7.14.9. Medical Exceptions. Law enforcement officers should be cognizant and observant of physical or medical disorders or disabilities, which might affect the administration or completion of an evidentiary test. Offer an alternative test if the person cannot medically complete the prescribed test.

7.14.10. Evidentiary Test Refusal. Law enforcement officers will prepare a statement in the incident report, to certify any test requested in accordance with this instruction which resulted in a test refusal.

7.14.10.1. The apprehending law enforcement officer will certify reasonable grounds existed to believe the person was operating or attempting to operate a motor vehicle while under the influence of alcohol, drugs or both and:

7.14.10.2. The person had been placed under apprehension, under detention, otherwise placed in security forces custody or was involved in a motor vehicle traffic accident;

7.14.10.3. The person was presented both written and oral notice of the Implied Consent policies;

7.14.10.4. The person refused to submit to and complete a test as requested by the law enforcement officer.

7.14.11. Test Failure. The apprehending law enforcement officer will certify there existed reasonable grounds to believe the person was operating or attempting to operate a motor vehicle while under the influence of alcohol, drugs or both; and

7.14.11.1. The person had been placed under apprehension, under detention, otherwise placed in security forces custody or was involved in a motor vehicle traffic accident; and

7.14.11.2. Results of the evidentiary test showed the person had an alcohol concentration of .08 percent or higher; .02 percent or higher, if the person is under 21 years of age; or .04 percent or higher, if operating on a Commercial Driver's License; and while operating a commercial vehicle.

7.14.11.3. The breath test instrument used is certified by the KDHE, the testing procedures used were in accordance with KDHE requirements, the breath test instrument

was operating within KDHE guidelines, and a certified breath test specialist operated the instrument and conducted the test.

7.14.11.4. A law enforcement officer completes certification upon signing his or her statement. No additional acts of oath, affirmation, acknowledgment or proof of execution shall be required. The Installation Commander may use the signed certification, copy or photo static reproduction thereof, to initiate suspension or revocation of driving privileges as appropriate.

7.14.11.5. In addition to the statement, law enforcement officers should contact the 22 MSG/CC (or delegated revocation authority) to obtain approval to issue the appropriate revocation of driving privileges letter for refusing implied consent testing or failing an evidentiary test.

7.14.12. DUI Offenses Committed by Non-Military Suspects. The traffic ways leading to main base entrance (Gate 1) and Southwind housing area (Gate 3) are located within exclusive Federal jurisdiction. Law enforcement officers who detect, identify and detain a person without military affiliation who they reasonably believe was operating or attempting to operate a motor vehicle while under the influence of alcohol, drugs or both, while the person and vehicle were attempting to enter McConnell Air Force Base will:

7.14.12.1. Follow detection, SFST, apprehension and evidentiary testing procedures detailed in SFOI 31-103.

7.14.12.2. Issue the violator a Central Violations Bureau (CVB) Form 1805, *U.S. District Court Violation Notice* citing "Title 18 USC Ch. 13, assimilating KSA 8-1576/8-1576(a)/8-2,144 (whichever is appropriate)"

7.14.12.3. The west entrance (Gate 2) and road ways leading to it are in proprietary jurisdiction only. Non-military offenders in proprietary jurisdiction will be identified and detained for the appropriate civilian law enforcement agency to take custody.

7.14.12.4. Security Forces personnel will provide statements to the responding officer detailing all witnessed driving behaviors and suspect actions. Document all matters in the law enforcement blotter.

7.14.12.5. Afford the suspect opportunity to make arrangements for their vehicle prior to departure. If the suspect refuses or cannot arrange to have the vehicle removed within a reasonable time, it may be towed or impounded IAW chapter 6 of this instruction.

7.15. Obedience to Alert Lights or Klaxon. Vehicles on designated alert response routes will move as far right as possible, stop and remain stopped while alert lights are in operation.

JOEL D. JACKSON, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoD 4160.21M, *Defense Material Disposition Manual,* 18 August 1997

DoDD 5525.4 *Enforcement of State Traffic Laws on DoD Installations* IC 1, 1 October 1986

AFI 31-101, *Integrated Defense*, 8 October 2009

AFI 31-218(I), *Motor Vehicle Traffic Supervision,* 22 May 2006

AFMAN 31-116, Air Force Motor Vehicle Traffic Supervision, 9 May 2012

AFI 10-245, *Antiterrorism (AT)*, 30 March 2009

AFI 44-121, *Alcohol and Drug Abuse Prevention and Treatment (ADAPT) Program,* 26 September 2001

AFI 91-207*, USAF Traffic Safety Program,* 22 May 2007

Kansas Statues Annotated

Adopted Forms

AF Form 1313, *Driver Record*

DD Form 1408, *Armed Forces Traffic Ticket*

AF Form 3545*, Incident Report*

AF Form 1315, *Accident Report*

Abbreviations and Acronyms

ADAPT—Alcohol and Drug Abuse Prevention and Treatment

ANSI—American National Standards Institute

ATV—All-Terrain Vehicle

BAC—Blood Alcohol Concentration

BDOC—Base Defense Operations Center

CE—Civil Engineer

CONUS—Continental United States

DFC—Defense Force Commander

DBIDS—Defense Biometric Identification System

DoD—Department of Defense

DoDM—Department of Defense Manual

DUI—Driving Under the Influence

DWI—Driving While Intoxicated

FO—Fixed Object

G—Government

GOV—Government Owned Vehicle

IDP—Integrated Defense Plan

JA—Judge Advocate

MAJCOM—Major Command

MJVA—Major Vehicle Accident

MVA—Minor Vehicle Accident

NAF—Non-appropriated Fund

NLD—No Liability Determined

ORM—Operational Risk Management

PCS—Permanent Change of Station

SFMIS—Security Forces Management Information System

SJA—Staff Judge Advocate

VCC—Visitor Control Center

Attachment 2

REVOCATION MATRIX

Figure A2.1. Revocation Matrix.

Misconduct	**Initial Action**	**Hearing Requirements**	**Final Action**
BAC 0.08% or higher or Refusal to test (On Base/Off Base) (Active Duty/Affiliated Civilians, i.e., Retired Military, Family Members, Retired Military Family Members, GSA/NAF employees) See Note 1	Immediate Preliminary Suspension by SFS Patrol or S5R	- 3 days after final assembly of evidence. 22 MSG/CC or 22d MSG/CD reviews - Offender can request a hearing in writing w/in 14 calendar days from issue date of preliminary suspension - Hearing scheduled NLT 14 days (when feasible) after request with hearing official	- If no request for hearing – suspension turns into one-year revocation - If hearing requested, after hearing – hearing official decides whether to revoke for a mandatory one-year period - Revocation period is computed from initial preliminary suspension date
BAC 0.08% or higher or Refusal to test (On Base) (Civilians, i.e., requires visitors pass or DBIDS access pass to get on the installation)	Immediate Preliminary Suspension if possible before local Law Enforcement arrives. Otherwise S5R issues next duty day via certified mail or in person	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 duty days from issue date of preliminary suspension - Hearing scheduled NLT 14 calendar days (when feasible) after request with hearing official	- If no request for hearing – suspension turns into one-year revocation - If hearing requested, after hearing – hearing official decides whether to revoke for a mandatory one-year period - Revocation period is computed from initial preliminary suspension date
BAC 0.05% or higher, But less than .08% Age 21 or older (On Base) (Active Duty)	Issue DD FM 1408 by patrolman on scene	- No hearing necessary for this incident unless processed as DWI by SFS - If processed as a DWI refer to block #1 for procedures	- Subject will have six points placed against their base driving record. If these six points DO NOT put offender over their maximum points no further action is necessary - If the six points puts the subject over their maximum points, process as an excessive points

			revocation
BAC 0.02% or higher but less than 0.08% (On/Off Base: Active Duty or Military Affiliated Civilians Under Age 21) See Note 1	Suspension by SFS Patrol or S5R	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 duty days from issue date of preliminary suspension - Hearing scheduled NLT 14 days (when feasible) after request with hearing official	- If no request for hearing – impose 120-day revocation - If hearing requested, after hearing – hearing official decides whether to revoke for up to 120 days - Revocation period is computed from initial preliminary suspension date
BAC 0.08% or higher Second, third or higher offense w/in 5 years. (All Personnel)	Suspension by SFS Patrol or S5R	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 duty days from issue date of preliminary suspension - Hearing scheduled NLT 14 days (when feasible) after request with hearing official	- If no request for hearing – 2nd offense five additional years 3rd offense permanent revocation - If hearing requested, after hearing, - hearing official decides whether to impose additional revocation - Revocation period is computed from initial preliminary suspension date or latest incident if not on revocation. - See note 2 for additional rules
BAC 0.02% or higher but less than 0.08% Second, third or higher offense w/in 5 years (All Personnel) (Under Age 21)	Suspension by SFS Patrol or S5R	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 duty days from issue date of preliminary suspension - Hearing scheduled NLT 14 days (when feasible) after request with hearing official	- If no request for hearing – 2nd offense, five additional years 3rd offense, permanent revocation - If hearing requested, after hearing, - hearing official decides whether to impose additional revocation

			- Revocation period is computed from initial preliminary suspension date or latest incident if not on revocation
Driving on Suspended License (All Personnel)	Patrolman issues letter of intent to suspend/revoke on scene, if not , S5R issues letter of intent to suspend/revoke	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 duty days from issue date of preliminary suspension - Hearing scheduled NLT 14 days after request with hearing official	- If no request for hearing – mandatory two-year revocation imposed effective as of date of incident - If hearing requested, after hearing, - hearing official decides whether to revoke for up to two years - If revocation is deemed appropriate; revocation period is effective as of date receiving revocation letter
- Excessive Points * 12 points in 12 months or 18 points in 24 months (All Personnel)	S5R issues letter of intent to suspend/revoke	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 duty days from issue date of preliminary suspension - Hearing scheduled NLT 14 days after request with hearing official	- If no request for hearing – suspension turns into six month revocation - If hearing requested, after hearing – hearing official decides whether to revoke for up to one year, but not less than 6 months - If revocation is deemed appropriate; revocation period is effective as of date receiving revocation letter
Serious incident involving a motor vehicle	22 MSG/CC	- 3 days after final assembly of evidence. 22 MSG/CC or 22 MSG/CD reviews - Offender can request a hearing in writing w/in 14 calendar days from issue date of preliminary suspension	- If no request for hearing – suspension turns into one-year revocation - If hearing requested, after hearing – hearing official decides whether to

		- Hearing scheduled NLT 14 days (when feasible) after request with hearing official	revoke for a mandatory one-year period - Revocation period is computed from initial preliminary suspension date

Attachment 3

DRIVING PRIVILEGE SUSPENSION/REVOCATION PERIODS

Figure A3.1. Driving Privilege Suspension/Revocation Periods.

Mandatory Suspension/Revocations	**Length of Suspension/Revocation**			
	Suspensions		**Revocations**	
Basis of Suspension/Revocation	**30 Days**	**60 Days**	**1 Year**	**2 Years**
Suspended or Revoked Driver's License				**X**
Driving on Installation Suspension/Revocation				**X**
Driving Under the Influence of Alcohol or Drugs (DUI)				
Refusal to Submit to or Failure to Complete Evidentiary Test			**X**	
DUI – 1st Offense			**X**	
DUI – 2nd and subsequent offenses				**X**
Driving Vehicle Impaired (DVI)	**Commander's discretion for active duty. Warning letters will be sent to civilian offenders.**			
Under 21 YOA with BrAC/BAC of .02 percent or higher			**X**	
Point Accumulation (See Table 5-3 for Point Assessments)				
06 Points Within 6 Months	**Warning Notice to 1st Sgt and Offender**			
12 Points Within 12 Months		**6 months -- XX**		
18 Points Within 24 Months			**XX**	
Non-mandatory Suspension/Revocations	**Length of Suspension/Revocation**			
	Suspensions		***Revocations***	
Basis of Suspension/Revocation	**30 Days**	**60 Days**	**1 Year**	**2 Years**
Expired Driver's License		**XX**		
Driving Without Valid Driver's License		**XX**		
Reckless Driving		**XX**		
Operating Motorcycle Without Proper Safety Equipment		**XX**		
Driving Without Insurance (Includes expired insurance, no proof of insurance, insurance purchased after date of citation.)		**XX**		
Excessive Speed -- Southwind Family Housing First Offense	**Warning Notice to 1st Sgt and Offender**			
Second Offense Within 6 Months		**XX**		
Nonmoving Violations (Except Seatbelt/Child Restraint Violations) within a 12 month period				
Third Offense	**Warning Notice to 1st Sgt and Offender**			
Fourth Offense	**7 day suspension**			
Fifth Offense	**14 day suspension**			
Sixth Offense	**30 day suspension**			
Seventh or Subsequent Offense	**90 day suspension**			

(X): Mandatory action required IAW AFI 31-204 or local policy.
(XX): Recommended minimum duration of Suspension/Revocation IAW local policy.
(*): Consistent with Kansas Statutes Annotated (KSA)
NOTE: Commanders may increase the duration of the revocation or suspension based on the person's driving record, frequency, flagrancy, or severity of the offender's actions.